

NOTICE OF DETERMINATION OF A DEVELOPMENT APPLICATION

Application number	DA2023/0559 PAN-368199
Applicant	Kirkland Group Pty Ltd 13 Jamison Street MACLEAN NSW 2463
Description of development	Dwelling house, secondary dwelling and shed
Property	294 Brooms Head Road GULMARRAD NSW 2463 Lot 1 DP 505536
Determination	Approved Consent Authority - Council
Date of determination	20 December 2023
Date from which the consent operates	20 December 2023
Date on which the consent lapses	20 December 2028
Building Code of Australia building classification	1A

Under section 4.18(1) of the EP&A Act, notice is given that the above development application has been determined by the granting of consent using the power in section 4.16(1)(a) of the EP&A Act, subject to the conditions specified in this notice.

Reasons for approval

- The development complies with the *Clarence Valley Local Environmental Plan 2011* and relevant Development Control Plan that is applicable to the proposed development.
- The development is consistent with the objectives of the zone.
- The development, subject to the recommended conditions, will not result in unacceptable adverse impacts upon the natural or built environments.
- The development is consistent with the objects of the *Environmental Planning and Assessment Act 1979*.
- Community views were considered as part of the assessment and determination in accordance with the requirements of the Clarence Valley Community Participation Plan and *Environmental Planning and Assessment Act 1979*.

Right of appeal / request a review of the determination

If you are dissatisfied with this determination:

Request a review

You may request a review of the consent authority's decision under section 8.3(1) of the EP&A Act. The application must be made to the consent authority within 6 months from the date that you received the original determination notice provided that an appeal under section 8.7 of the EP&A Act has not been disposed of by the Court.

Rights to appeal

You have a right under section 8.7 of the EP&A Act to appeal to the Court within 6 months after the date on which the determination appealed against is notified or registered on the NSW planning portal.

Objector's right of appeal against the determination

The EP&A Act 1979 does not give a right of appeal against this determination to an objector.

The Dictionary at the end of this consent defines words and expressions for the purposes of this determination.

Carmen Landers

Development Planner (Systems)

Person on behalf of the consent authority

Terms and Reasons for Conditions

Under section 88(1)(c) of the EP&A Regulation, the consent authority must provide the terms of all conditions and reasons for imposing the conditions other than the conditions prescribed under section 4.17(11) of the EP&A Act. The terms of the conditions and reasons are set out below.

GENERAL CONDITIONS

1. Development must be carried out in accordance with the following approved plans and documents, except where the conditions of this consent expressly require otherwise.

Approved plans

Sheet No	Plan Title	Drawn by	Date of plan
01	Site Plan	Clarence Valley Building Design	14/12/2023
02	Floor Plan	Clarence Valley Building Design	14/12/2023
03	Elevations	Clarence Valley Building Design	14/12/2023
05	Secondary Dwelling	Clarence Valley Building Design	14/12/2023

In the event of any inconsistency with the approved plans and a condition of this consent, the condition prevails.

Condition reason: To ensure all parties are aware of the approved plans and supporting documentation that applies to the development

2. **Prevention of glare nuisance**

The roof covering is to be of a colour or finish which does not produce glare which adversely affects the amenity of nearby properties. Details of how this to be achieved are to be shown on the construction certificate plans.

Condition reason: To ensure that the roof material does not produce a glare nuisance to nearby properties

3. **Bushfire Attack Level (BAL) requirements**

The dwelling site is located in a bushfire prone area and the bushfire attack level is BAL 12.5 as determined in accordance with AS 3959 - 2019. The dwelling shall be constructed to a minimum BAL 12.5 with full details of how this is to be achieved being shown on the plans/specifications submitted with the Construction Certificate documentation.

Condition reason: To ensure that the building is provided with adequate protection from bushfires

BUILDING WORK

BEFORE ISSUE OF A CONSTRUCTION CERTIFICATE

4. **Section 68 Sanitary Plumbing & Drainage**

Prior to issue of a Construction Certificate approval under Section 68 of the *Local Government Act 1993* shall be obtained from Council for any proposed sewerage work, water plumbing and stormwater work. This application can be lodged via the NSW Planning Portal or at Council's office.

Condition reason: To Comply with the provisions of the *Local Government Act 1993*

BEFORE BUILDING WORK COMMENCES

5. Toilet Facilities

Toilet Facilities are to be provided on the work site at the rate of one toilet for every 20 persons or part of 20 persons employed at the site. Each toilet provided must be:

- a A standard flushing toilet, connected to a public sewer, or
- b An approved temporary chemical closet.

The provision of toilet facilities in accordance with this condition must be completed before any other work is commenced.

Condition reason: To provide onsite facilities in accordance with work health and safety requirements

6. Establishment of Asset Protection Zones (APZs)

The following Asset Protection Zone (APZ) Inner Protection Areas (IPA) shall be established around the dwelling prior to the commencement of the building works and maintained in accordance with the requirements of the NSW Rural Fire Service document titled 'Planning for Bushfire Protection 2019' and AS3959 - 2019.

North: To Boundary

South: To Boundary

West: To Boundary

East: To Boundary

The IPA shall have a tree canopy cover of less than 15%; no trees within 10 metres of the dwelling; tree canopies shall be separated by a minimum of 5 metres; and all trees shall have their lower limbs removed to a height of two metres above ground. Shrubs shall be located a minimum of twice the mature height from the dwelling and not exceed 10% of ground cover with regular large gaps between vegetation. All leaves and vegetation debris shall regularly be removed and grasses shall not exceed 10cm in height.

Condition reason: To ensure that the dwelling is provided with an appropriate APZ

7. Signs on site

A sign must be erected in a prominent position on any site on which building work or demolition work is being carried out:

- a Showing the name, address, and telephone number of the principal certifier for the work, and
- b Showing the name of the principal contractor (if any) for any building work and telephone number on which that person may be contacted outside working hours, and
- c Stating that unauthorised entry to the work sit is prohibited.

Any such sign is to be maintained while the building work or demolition work is being carried out but must be removed when the work has been completed.

NOTE: this does not apply in relation to building work or demolition work that is carried out inside an existing building that does not affect the external walls of the building.

Condition reason: Prescribed condition EP&A Regulation, clauses 98A (2) and (3)

8. Issue of Construction Certificate

No Construction is to be commenced until a Construction Certificate has been issued.

Condition reason: To ensure that the works comply with the state's building regulations

9. **Notice of intention to commence work**
Prior to work commencing on a development the applicant must give notice to Council of their intention to commence work. Such notice shall be submitted to Council at least two (2) days before work commences.
Condition reason: To comply with legislative requirements
10. **Erosion and Sediment Control**
All erosion and sediment control measures are to be installed and maintained in accordance with the Statement for Sediment and Erosion Control that was submitted and approved with the development application.
Condition reason: To ensure sediment laden runoff and site debris do not impact local stormwater systems and waterways

DURING BUILDING WORK

11. **Procedure for critical stage inspections**
While building work is being carried out, the work must not continue after each critical stage inspection unless the principal certifier is satisfied the work may proceed in accordance with this consent and the relevant Construction Certificate.
Condition reason: To require approval to proceed with building work following each critical stage inspection
12. **Working Construction Hours**
Working hours on construction or demolition shall be limited to the following:
i 7.00am to 6.00pm Monday to Friday
ii 8.00am to 1.00pm Saturdays
iii No work permitted on Sundays and public holidays
Condition reason: To protect the amenity of the surrounding area
13. **Site Safety Management**
Building equipment and/or materials shall be contained wholly within the site and not be stored or operated on the footpath or roadway unless specific written approval has been obtained from Council beforehand.
All excavations and back filling associated with the erection and demolition of a building must be executed safely and in accordance with appropriate professional standards and must be properly guarded and protected to prevent them from being dangerous to life or property.
Condition reason: To ensure site management measures are implemented during the carrying out of site work

14. **Shoring and Adequacy of Adjoining Property**

If the development involves excavation that extends below the level of the base of the footings of a building, structure or work on adjoining land (including any structure or work within a road or rail corridor), the person having the benefit of the development consent must, at the person's own expense:

- a Protect and support the building, structure or work from possible damage from the excavation, and
- b Where necessary, underpin the building, structure or work to prevent any such damage.

This condition does not apply if the person having the benefit of the development consent owns the adjoining land or the owner of the adjoining land has given consent in writing to that condition not applying.

Condition reason: Prescribed condition - EP&A Regulation clause 98E)

15. **Approved Plans Onsite**

A copy of the approved and certified plans, specifications and documents incorporating the conditions of approval and certification shall be kept on the site at all times and shall be readily available for perusal by an officer of Council or the Private Certifier.

Condition reason: To provide certainty on the terms of approval and approved plans

16. **Waste enclosure**

A suitable enclosure shall be provided on site, during construction, for depositing waste materials that could become wind blown. Waste materials shall be disposed of to an approved recycling service or waste depot. No burning of waste materials shall occur.

Condition reason: To ensure waste material is appropriately disposed of

BEFORE ISSUE OF AN OCCUPATION CERTIFICATE

17. **Occupation Certificate**

The development is not to be occupied or used until such time as an Occupation Certificate has been issued.

Condition reason: To ensure the safety of the occupants

18. **Certification of installation of Basix commitments**

Prior to the issue of an Occupation Certificate all commitments listed in the relevant Basix Certificate for this development shall be completed/installed and the principal contractor responsible for the construction work shall provide the principal certifier with a certificate which states that **all commitments** listed within the Basix Certificate have been installed in accordance with the requirements of that Basix Certificate.

Condition reason: Prescribed condition (Part 4 Division 2, Subdivision 1 and 2 of the EP&A Regulation 2021)

19. **Approval to Operate**

An Approval to Operate the Onsite Wastewater System must be issued prior to the issue of the Occupation Certificate.

Condition reason: To ensure compliance with Clarence Valley Council's On-Site Wastewater Management Strategy 2019

20. **Display of street/road numbers**

Prior to issue of the Occupation Certificate, the following Road Numbers have been allocated to the premises and shall be clearly displayed so that they are visible from the road:

294 Brooms Head Road, Gulmarrad
294A Brooms Head Road, Gulmarrad

The site and size of proposed householder mailboxes should meet Australia Post guidelines.

Condition reason: To reduce confusion and assist Australia Post, emergency services and the general community in locating the premises

21. **Planning Agreement for Biodiversity Offset**

Pursuant to section 7.4 of the Environmental Planning and Assessment Act 1979 (EP&A Act), the developer is to execute and deliver to the Council the Planning Agreement, in accordance with Subdivision 2, Division 6 of Part 4 of the EP&A Act, which the developer has offered to enter into, prior to issue of the Occupation Certificate.

The vegetation removal requirements have been identified as 9 native trees. In accordance with Clarence Valley Council's Biodiversity Offset Policy a contribution of \$1,800.00 is to be made to Council's Biodiversity Offset Fund through a Planning Agreement (PA).

Any contribution amounts that form part of a PA are required to be paid prior to the issue of the Subdivision/Occupation Certificate.

Please note the developer is required to pay Council's adopted Planning Agreement Preparation Fee and Advertising fee at time of lodgement. The 2023/24 adopted Planning agreement Fee is \$614.35 and Advertising Fee is \$260.00.

Condition reason: To ensure compliance with Clarence Valley Council's Biodiversity Offset Policy

General advisory notes

This consent contains the conditions imposed by the consent authority which are to be complied with when carrying out the approved development. However, this consent is not an exhaustive list of all obligations which may relate to the carrying out of the development under the EP&A Act, EP&A Regulation and other legislation. Some of these additional obligations are set out in the [*Conditions of development consent: advisory notes*](#) . The consent should be read together with the *Conditions of development consent: advisory notes* to ensure the development is carried out lawfully.

The approved development must be carried out in accordance with the conditions of this consent. It is an offence under the EP&A Act to carry out development that is not in accordance with this consent.

Building work or subdivision work must not be carried out until a construction certificate or subdivision works certificate, respectively, has been issued and a principal certifier has been appointed.

A document referred to in this consent is taken to be a reference to the version of that document which applies at the date the consent is issued, unless otherwise stated in the conditions of this consent.

Dictionary

The following terms have the following meanings for the purpose of this determination (except where the context clearly indicates otherwise):

Approved plans and documents means the plans and documents endorsed by the consent authority, a copy of which is included in this notice of determination.

AS means Australian Standard published by Standards Australia International Limited and means the current standard which applies at the time the consent is issued.

Building work means any physical activity involved in the erection of a building.

Certifier means a council or a person that is registered to carry out certification work under the *Building and Development Certifiers Act 2018*.

Construction certificate means a certificate to the effect that building work completed in accordance with specified plans and specifications or standards will comply with the requirements of the EP&A Regulation and *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021*.

Council means Clarence Valley Council.

Court means the Land and Environment Court of NSW.

EPA means the NSW Environment Protection Authority.

EP&A Act means the *Environmental Planning and Assessment Act 1979*.

EP&A Regulation means the *Environmental Planning and Assessment Regulation 2021*.

Independent Planning Commission means Independent Planning Commission of New South Wales constituted by section 2.7 of the EP&A Act.

Occupation certificate means a certificate that authorises the occupation and use of a new building or a change of building use for an existing building in accordance with this consent.

Principal certifier means the certifier appointed as the principal certifier for building work or subdivision work under section 6.6(1) or 6.12(1) of the EP&A Act respectively.

Site work means any work that is physically carried out on the land to which the development the subject of this development consent is to be carried out, including but not limited to building work, subdivision work, demolition work, clearing of vegetation or remediation work.

Stormwater drainage system means all works and facilities relating to:
the collection of stormwater,

the reuse of stormwater,

the detention of stormwater,

the controlled release of stormwater, and

connections to easements and public stormwater systems.

Strata certificate means a certificate in the approved form issued under Part 4 of the *Strata Schemes Development Act 2015* that authorises the registration of a strata plan, strata plan of subdivision or notice of conversion.

Subdivision certificate means a certificate that authorises the registration of a plan of subdivision under Part 23 of the *Conveyancing Act 1919*.

Subdivision works certificate means a certificate to the effect that subdivision work completed in accordance with specified plans and specifications will comply with the requirements of the EP&A Regulation.

Sydney district or regional planning panel means the Northern Regional Planning Panel.